

Calendar Line 4

Case Name: *Corey M v. Damian Hernandez, et al.*

Case No.: 25CV466415

Plaintiff seeks an order compelling Defendant XPO Logistics to provide further responses to interrogatories and requests monetary sanctions of \$14,370.00.

The Court gleans from parties' papers that the following interrogatories were in dispute: Special Interrogatories 47-52, Special Interrogatory 65-66, and Form Interrogatories - Employment Law No. 216.1.

With respect to Special Interrogatories 47-52 and Form Interrogatories - Employment Law No. 216.1, the Court finds that Defendant has provided further responses to all the disputed interrogatories. Plaintiff's contention that Defendant's responses to Special Interrogatories Nos. 65-66 remain deficient, based solely on Plaintiff's disbelief regarding their completeness, is unpersuasive. The initial responses are no longer operative, and Defendant XPO has sufficiently addressed the relevant concerns. Thus, the Court finds that there is nothing left to accomplish by way of this motion, and there is nothing the Court can order that would or should result in more or different production. In this sense, Plaintiff's Motion to Compel Further Responses is MOOT.

Plaintiff also seeks sanctions against Defendant in the amount of \$14,370.00. The request is well taken and is GRANTED. Defendant had a responsibility to provide responses as agreed upon between the parties by January 16, 2026. (See Decl. Levy, Exhibit 9). Defendant's failure to do so made bringing this motion necessary. Even after a party provides discovery responses, the court has authority to grant sanctions, even if it denies the motion to compel responses "as essentially unnecessary, in whole or in part." (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 409.) However, the Court finds Plaintiff's claimed eleven (11) hours to prepare the motion, anticipated six (6) hours for a reply, and anticipated one (1) hour to prepare and attend the hearing on this motion excessive under the circumstances. Accordingly, Defendant shall pay Plaintiff monetary sanctions in the amount of \$6,360.00 within 20 days of the date of service of the final order.

Plaintiff shall prepare and submit the final order, accompanied by the necessary Form EFS-020, within 10 days of the date of the hearing.

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Calendar Line 5

Case Name: *Shabana Pirani v. Costco Wholesale Corporation*

Case No.: 25CV473157

Before the Court is Plaintiff Shaban Pirani's ("Plaintiff") motion to strike Defendant Costco Wholesale Corporation's ("Defendant") answer and request for entry of default. Pursuant to California Rule of Court 3.1308, the Court issues its tentative ruling as follows:

This is an action for damages arising out of a vehicle collision that purportedly occurred in a Costco parking lot. Plaintiff initiated this action on August 21, 2025, with the filing of a Judicial Form Complaint which asserts a variety of claims, including negligence. On October 22, 2025, Defendant filed its Answer to the Complaint. On January 26, 2026, Plaintiff filed the instant motion to strike Defendant's Answer and request for entry of default. Defendant opposes the motion.

As an initial matter, the Court admonishes Plaintiff that she was *required* under Code of Civil Procedure section 435.5 to meet and confer with Defendant prior to filing the instant motion. (See Code Civ. Proc., § 435.5, subd. (a).) Plaintiff has not filed a declaration attesting to having met and conferred with Defendant as required by the statute, and Defendant's counsel's own declaration affirms that no such meet and confer took place. (See Declaration of Brian D. Johnson in Support of Opposition to Motion to Strike and for Entry of Default ("Johnson Decl."), ¶ 2.) Despite this failure, which could be dispositive, the Court will address the merits of Plaintiff's motion in the interest of judicial economy.

Plaintiff's motion to strike Defendant's Answer is predicated on the following arguments: (1) she was never served with the Answer; (2) no proof of service for the Answer was filed with the Court; (3) Defendant's counsel "has no valid appearance and is subject to a separate default proceeding"; (4) and Defendant has failed to properly appear or defend this action. The Court does not find any of these arguments persuasive.

First, a code-compliant proof of service was filed with the Court on October 22, 2025 (see Code Civ. Proc., § 1013a), which reflects that service of the Answer was effectuated on Plaintiff by mail that day to the address provided by her, which is notably the same address that she lists in the header of this motion. This filing clearly defeats Plaintiff's contention that no proof of service was ever filed with the Court. Generally, the filing of a proof of service that complies with applicable statutory requirements creates by itself a rebuttable presumption that service was proper. (*Dill v. Berquist Construction Co.* (1994) 24 Cal.App.4th 1426, 1441.) The rebuttable presumption can only be dispelled by contradictory evidence. (See *Craig v. Brown & Root* (2000) 84 Cal.App.4th 416, 421.) Plaintiff provides contradictory evidence in the form of her declaration, wherein she states that she was not served with the Answer and only discovered it was filed by reviewing the Court docket. (Declaration of Shabana Pirani in Support of Motion to Strike ("Pirani Decl."), ¶ 2.)¹

¹ The Court notes that any independently filed and procedurally unattached and inappropriate declarations filed before the notice of this motion, which was filed on January 26, 2026, are not before the Court.